IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
COURT-III

ITEM No. 305
CA-344/2022
IN
CAA-17(ND)/2022

IN THE MATTER OF:
M/s. Kiyansh Creations Pvt. Ltd. With Sonansh Creations Pvt. Ltd. .... Petitioner/Applicant

Order under Section 230-232 of the Companies Act, 2013.

Order delivered on 06.11.2023

CORAM:
SHRI BACHU VENKAT BALARAM DAS
HON'BLE MEMBER (JUDICIAL)

SHRI RAHUL PRASAD BHATNAGAR
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For Petitioner	:	Mr. Mukesh Sukhija a/w Ms Pooja Bhatia PCS
For IT Dept.	:	Mr. Puneet Rai. Sr. Sd. Counsel, Mr. Nikhil Jain Advs.
For the RD	:	Ms. Shankari Mishra Adv.
For the OL	:	Ms. Hemlata Rawat Adv.

ORDER

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The RD and OL have filed their respective reports which are on record. Ld. Counsel appearing for the Income Tax Department has submitted that the report w.r.t. transferor company has already been filed hence it is not on record. Ld. Counsel shall take steps to bring the report on record within three days.

Ld. Counsel for the Applicant has submitted that an affidavit/undertaking has been filed w.r.t. the Income Tax dues. The Applicant shall serve a copy of the undertaking on the Ld. Standing Counsel appearing for the Income Tax Department within three days.

List the matter for arguments **on 11.12.2023.**

-Sd-
(RAHUL PRASAD BHATNAGAR)
MEMBER (TECHNICAL)

-Sd-
(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)

ANAND DUBEY